RAVEN ADVERSARY

FORENSIC AUDIT INTELLIGENCE DOSSIER

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STRUCTURAL VULNERABILITY EXPOSURE

"Asymmetric regulatory risk allocation between a 'reasonable best efforts' standard for HSR Act clearance versus a 'best efforts' standard for healthcare licensing, combined with a 48.72% ($1.40B) minority co-investment by wholesale distributor McKesson Corporation, creating vertical foreclosure scrutiny without a contractual obligation to accept burdensome divestitures."

CAPITAL AT RISK

Target Breakup Fee: $145.96M | Parent Reverse Breakup Fee: $291.93M

Mutually exclusive bilateral termination fees (Non-Additive Scenarios)

TABLE OF CONTENTS

01. Executive Summary & Stress Analysis 01

02. Ranked Structural Vulnerabilities Table 02

03. Top 3 Threats & Specific Redlines 03

04. Evidence Desk & Source Citations 04

05. Strategic Negotiation Playbook 05

06. Methodology & Disclaimers 06

VULNERABILITY	OWNER	LVG	WALK-AWAY	COST
McKesson Strategic Co-Investment Vertical Supply Chain Exposure	Legal	7	Regulatory demand requiring structural divestiture of McKesson distribution lines or Target infusion hubs.	$5.0M - $12.0M in extended antitrust counsel, economic consulting, and expert testimony.
Several Liability Enforcement Gap on Equity Guarantees	Credit	6	Uncured solvency default or bankruptcy filing by one guarantor without step-in obligations.	$1.5M - $3.5M in Delaware Court of Chancery specific performance litigation expenses.

THREAT 1: FTC/DOJ VERTICAL FORECLOSURE DEADLOCK UNDER REASONABLE BEST EFFORTS STANDARD

McKesson's $1.40B equity co-investment (48.72% of total equity) into Target creates vertical integration between a dominant wholesale pharmaceutical distributor and a major infusion provider (86 pharmacies, 187 ambulatory suites). Under a 'reasonable best efforts' covenant, Parent and McKesson are not contractually compelled to accept structural supply divestitures or burdensome behavioral restrictions, potentially producing an impasse before the October 5, 2027 Outside Date.

PROPOSED_LEGAL_REDLINE:

Section 6.03(a) of the Merger Agreement shall be amended to add: 'Notwithstanding anything to the contrary in this Agreement, Parent, Merger Sub, and the Guarantors agree to take any and all steps necessary to avoid or eliminate each and every impediment under any Antitrust Law, including proposing, negotiating, committing to, and effecting the sale, divestiture, or license of assets or operational behavioral firewalls, provided that such actions do not constitute a Company Material Adverse Effect.'

THREAT 2: SEVERAL AND NOT JOINT LIMITED GUARANTEE ENFORCEABILITY SHORTFALL

The $291,927,951 Parent Termination Fee and the $7.5M aggregate expense reimbursement cap are guaranteed by CD&R Fund XII and McKesson Corporation on a strictly several and not joint basis. Public filings omit exact individual guarantee splits; if either guarantor breaches or defaults on its pro rata allocation, Delaware law does not obligate the remaining guarantor to step in or cure the shortfall.

PROPOSED_LEGAL_REDLINE:

Section 1 of each Limited Guarantee shall be amended to provide: 'The Guarantors hereby agree that all obligations hereunder to pay the Parent Termination Fee pursuant to Section 8.03(c) and enforcement expenses pursuant to Section 8.03(e) of the Merger Agreement shall be joint and several obligations of Clayton, Dubilier & Rice Fund XII, L.P. and McKesson Corporation.'

THREAT 3: REMEDY EXCLUSIVITY BARRING CUMULATIVE SPECIFIC PERFORMANCE AND DAMAGES

Under Section 9.08 of the Merger Agreement, Target holds third-party beneficiary status to compel specific performance of the equity financing, but the collection of the $291,927,951 Parent Termination Fee is contractually designated as the sole and exclusive monetary remedy upon termination, legally barring simultaneous or subsequent recovery of broader contract damages.

PROPOSED_LEGAL_REDLINE:

Section 8.03(f) of the Merger Agreement shall be amended to provide: 'The receipt of the Parent Termination Fee shall not limit, preclude, or extinguish the Company\'s right to seek equitable relief, including specific performance pursuant to Section 9.08, or pursue monetary damages in the event of Parent\'s, Merger Sub\'s, or Guarantors\' willful breach or intentional fraud prior to termination.'

EVIDENCE 1: [UNVERIFIED SOURCE] ABSENCE OF FINANCING CONDITIONALITY BUT SEVERAL LIMITED GUARANTEE

"Form 8-K Item 1.01: 'The Closing is not conditioned on Parent\'s receipt of financing... Parent and Merger Sub delivered guarantees... in favor of the Company... guaranteeing certain obligations of Parent and Merger Sub under the Merger Agreement, severally and not jointly.'"

SOURCE: SEC Form 8-K | PAGE: Pages 2-3 | CLAUSE: Item 1.01 Entry into a Material Definitive Agreement
PATH: Primary SEC Filing

EVIDENCE 2: [UNVERIFIED SOURCE] ASYMMETRIC REGULATORY COVENANTS AND DROP-DEAD TIMELINE

"Form 8-K Item 1.01: 'Parent, Merger Sub and the Company have agreed to use reasonable best efforts to obtain required governmental and regulatory approvals, including under the HSR Act, and Parent has agreed to use best efforts to obtain the consents... required in connection with the specified healthcare filings... Outside Date is 11:59 p.m., New York City time, on October 5, 2027.'"

SOURCE: SEC Form 8-K | PAGE: Page 3 | CLAUSE: Item 1.01 (Covenants and Termination)
PATH: Primary SEC Filing

EVIDENCE 3: [UNVERIFIED SOURCE] UPSTREAM PHARMACEUTICAL SUPPLY CONCENTRATION RISK

"Form 10-Q (Quarter Ended June 30, 2026): 'Three vendors accounted for approximately 57% of our pharmaceutical and medical supply purchases during the six months ended June 30, 2026, compared to four vendors accounting for 68% in the full year 2025.'"

SOURCE: SEC Form 10-Q | PAGE: Note 2 | CLAUSE: Part I, Item 1, Note 2 (Concentration of Risk)
PATH: Primary SEC Filing

KEY CONTRACTUAL THRESHOLDS

EXTRACTED FIELD	FORENSIC VALUE
Termination Fees	Company Termination Fee: $145,963,976 | Parent Termination Fee: $291,927,951
MAC Clauses	Customary market carve-outs excluding general economic, healthcare industry, and financial market changes, provided they do not disproportionately impact the Company.
Outside Dates	October 5, 2027 at 11:59 p.m. Eastern Time
Voting Thresholds	Adoption of the Merger Agreement by affirmative vote of the holders of a majority of outstanding shares of Option Care Health common stock.
Financing Outs	None; closing is expressly not conditioned on Parent's receipt of financing.
Indemnification Caps	Enforcement expense recovery capped at $7,500,000 in the aggregate.

BENCHMARK: PARENT TERMINATION FEE AS % OF EQUITY VALUE

Deal Value: 5.00% ($291.93M / $5.838B) **Market Benchmark: 5.00% - 6.50% for leveraged buyouts with PE sponsors** **Percentile: 50th percentile**

Fee is standard for sponsor transactions but asymmetrical compared to the 2.50% ($145.96M) Target Company Termination Fee.

BENCHMARK: TARGET BREAKUP FEE AS % OF EQUITY VALUE

Deal Value: 2.50% ($145.96M / $5.838B) **Market Benchmark: 2.75% - 3.50% for Delaware public target mergers** **Percentile: 25th percentile**

Moderately low company termination fee, preserving target fiduciary flexibility.

NEGOTIATION SEQUENCE

1. Phase 1: Delivery of formal information request regarding Onyx Bidco LLC equity allocation and governance.

2. Phase 2: Joint antitrust working sessions with FTC/DOJ economic experts to establish vertical supply neutrality.

3. Phase 3: Formal negotiation of Limited Guarantee joinder to close several liability gaps prior to proxy mailing.

SAMPLE OUTREACH TEMPLATE

CONFIDENTIAL DRAFT: Board of Directors, Option Care Health, Inc. to Onyx Bidco LLC Board: In connection with pending regulatory filings under the Hart-Scott-Rodino Act and multi-state pharmacy board filings, Option Care Health requests formal verification of the equity apportionment and governance agreements between CD&R Fund XII and McKesson Corporation. To ensure execution certainty, the Company requests an agreement clarifying that guarantor obligations regarding the Parent Termination Fee operate on a joint and several basis.

FALLBACK POSITIONS

- Accept several liability provided that each guarantor deposits its pro rata portion of the $291.93M fee into a segregated third-party escrow account upon receipt of a Second Request.

- Agree to mutual termination without litigation if regulatory remedies exceed a pre-defined gross margin impact threshold across Target's network.

PREDICTIVE LEVERAGE MODEL

Activist Ownership: NOT ESTABLISHED BY THE AVAILABLE RECORD

Estimated Settlement Cost: NOT ESTABLISHED BY THE AVAILABLE RECORD

Estimated Deal Premium: NOT ESTABLISHED BY THE AVAILABLE RECORD

Leverage Conclusion: The public record contains no active Schedule 13D filings indicating an activist accumulation or bumpitrage campaign as of the merger announcement.

COMPARATIVE BENCHMARKS

Parent Termination Fee as % of Equity Value - Deal Value: 5.00% ($291.93M / $5.838B) vs Benchmark: 5.00% - 6.50% for leveraged buyouts with PE sponsors

Percentile: 50th percentile | Insight: Fee is standard for sponsor transactions but asymmetrical compared to the 2.50% ($145.96M) Target Company Termination Fee.

Target Breakup Fee as % of Equity Value - Deal Value: 2.50% ($145.96M / $5.838B) vs Benchmark: 2.75% - 3.50% for Delaware public target mergers

Percentile: 35th percentile | Insight: Moderately low company termination fee, preserving target fiduciary flexibility.

REGULATORY DEADLINES

Hart-Scott-Rodino (HSR) Antitrust Notification Filings - 0 DAYS LATE

Consequence: Statutory waiting period cannot commence until both parties file notifications.

Cure Memo: Ensure concurrent filings by Option Care Health, CD&R Fund XII, and McKesson Corporation.

Merger Agreement Outside Date Drop-Dead Deadline - 0 DAYS LATE

Consequence: Either party may unilaterally terminate if closing has not occurred, subject to breach limitations.

Cure Memo: Monitor regulatory review cadence to ensure clearance prior to the 12-month boundary.

ESOP & EMPLOYEE BENEFITS ANALYSIS

Pass-Through Voting: None

Trustee Discretion: Constrained

ERISA 404(c) Compliant: No

Conclusion: No ESOP-specific voting pass-through or trustee override mechanisms are disclosed as material voting factors in SEC Form 8-K.

LITIGATION FORECAST

Stockholder Disclosure Breach of Fiduciary Duty Litigation - Pathway: Dependent on the filing of the preliminary proxy statement (Schedule 14A), disclosure of background negotiations, and financial advisor fairness opinion methodologies. | Est. Settlement: $250k - $750k in supplemental proxy disclosures and mootness fee resolutions.

Delaware Court of Chancery Specific Performance Claim - Pathway: Dependent on whether Parent attempts to abandon closing due to financing syndication hurdles or regulatory resistance prior to October 5, 2027. | Est. Settlement: Litigated to judgment or settled via restructuring of equity allocations.

ACTING IN CONCERT ALERTS

ALERT: Potential control / Section 13(d) implications requiring legal review: The co-investment structure and near-equal equity contribution between CD&R and McKesson require confirmation that governance rights do not constitute an undisclosed Section 13(d) group.

Entities: Clayton, Dubilier & Rice Fund XII, L.P., McKesson Corporation, Onyx Bidco LLC

Signals: Joint delivery of $2,873,295,853 equity commitment package, Several Limited Guarantees backing Parent Termination Fee, Strategic co-investment representing ~48.72% of total equity

THE RAVEN PROTOCOL

Raven is designed for deal protection, governance risk analysis, and exposure mapping. We systematically identify structural and financial vulnerabilities that could compromise control or impose undisclosed liabilities. Our evidence-first approach prioritizes material structural vulnerabilities—mechanisms that create explicit downside for the buyer or unintended consequences for the seller.

DISCLAIMER

This report is generated by an artificial intelligence system and does not constitute legal or financial advice. All findings must be verified by human legal counsel and specialist auditors. The vulnerability analysis is a simulation of risk based solely on the provided documents and may not account for unstated counterparty motivations or regulatory nuances.